Brooklyn Public Library Policy and Procedure

Policy #II.Staff: HR14
Date Issued: October 2006
Effective Date: June 2006

Subject: PROGRESSIVE DISCIPLINE
Application: All Staff

Policy statement: It is the policy of the Library to follow the concept of progressive discipline in appropriate instances involving deficient performance and misconduct. The purpose of discipline is to be corrective and progressive discipline is based on the premise that employees will change and correct behavior once the importance of misconduct has been emphasized and the employee had been given an opportunity to improve performance. Brooklyn Public Library has the right to respond to and remedy inappropriate employee behavior or conduct and accordingly certain offenses will result in immediate termination.

Guidelines: **See: GUIDELINES/PROCEDURE**

Depending on the level of deficient performance, misconduct or violation of Library policy, the application levels of progressive discipline can vary. Generally, the Progressive Discipline process involves several steps. Each step in the process more strongly encourages the employee to modify their behavior by offering varying levels of discipline.

Types of Disciplinary Action:
The steps outlined below are general guidelines and not every instance must progress in precisely the same manner. In some cases, a step may be repeated before progressing further, or one or more steps may be skipped, and in some cases immediate termination may be appropriate. Various factors are taken into account when discipline is imposed on an employee, including but not limited to past disciplinary history, the severity of the offense, performance record, and years of service.

1. Oral Warning: A formal or informal discussion with the employee regarding performance deficiencies, misconduct or violation of Library policies. In such discussions, the employee is also informed of the consequences that may occur for repeated or additional violations. Supervisors must keep a record and summary of the discussion.
2. Written Warning: A written warning should indicate the deficient performance, misconduct or violation of Library policy, the relevant facts, the expected improvements, a time line of expected results, and consequences of continued misconduct. A record of the written warning shall be placed in the employee's personnel file.

3. Suspension Without Pay: A suspension without pay means placing an employee in a temporary, non-duty, non-pay status. Suspension without pay may occur when an employee fails to correct his/her performance or misconduct after oral and/or written warning or in appropriate instances as an initial disciplinary measure. A suspension without pay shall be memorialized in the employee's personnel file. Exempt employees generally will not be suspended without pay unless the suspension is for a full workweek.

4. Termination: Termination of employment by the Library is necessary when other disciplinary methods have failed or serious violations or misconduct have been committed.

Union Employees: Employees who are part of the collective bargaining unit must adhere to the rules and procedures that are set forth in the Collective Bargaining Agreement in addition to BPL policies. Employees in this category also are subject to discipline on a

progressive basis. For more details regarding the steps and procedure of union employees, please refer to the Union Contract.

Responsibilities: The Human Resources Department is responsible for providing support and advice to managers and supervisors in regards to the progressive discipline process. If you have questions regarding this policy you can contact the Human Resources Department.
Issuing Agency: Human Resources
Revision Date: June 2006
Related Public Documents:
Supersedes Policy: HR14,
February 1999 Related Policy:

GUIDELINES/PROCEDURE

The following guidelines/procedures are meant to assist staff in the implementation of the Progressive Discipline Policy. The following outlines the step-by-step procedure to be utilized by a supervisor who is going through the process of disciplining an employee. If you have any questions regarding this policy or the guidelines below, please direct all questions to the Human Resources Department.

A. Oral/Written Warnings:

1. Oral warnings shall be administered by the immediate supervisor or 2nd rater. Supervisors may have the second supervisor sit in on these meetings. All present should keep a record that the meeting took place.

2. Written warnings shall be administered by the immediate supervisor after review with the appropriate senior manager (usually the 2nd rater on a service rating, but there can be exceptions throughout the Library system). Supervisors may have the second supervisor sit in on these meetings.

3. Employees should be allowed to append comments (rebuttal statements) to any written warning. Such rebuttals will be kept together with all written warnings in the employee's personnel file.

4. All oral / written warnings shall be conducted in private.

B. Statement of Charges:

A Statement of Charges shall be issued for recommendations for suspension and termination as outlined below:

1. The Statement of Charges for suspensions shall be issued by the appropriate department head or senior manager. A Statement of Charges for termination shall be issued by the department head.

2. The Statement of Charges should include a summary of the misconduct, deficient performance or violations of Library policy. It should cite prior warnings, if applicable, and recommend suspension or termination.

3. All Statement of Charges must be reviewed by the Human Resources Department prior to issuance. Copies of appropriate documentation should also be included for review.

C. Adjudication

1. Disciplinary hearings for employees covered by the collective bargaining shall be in accordance with the agreement.

2. Disciplinary proceedings for employees not covered by collective bargaining shall be as follows:

    a. A disciplinary investigation will be conducted by the Human Resources Department. A Human Resources manager will be assigned to conduct an investigation during which supervisors, employees and other witnesses may be interviewed. Relevant documentation can be submitted as evidence by the employee subject to disciplinary proceedings. The Human Resources Department will issue a final decision within ten (10) working days of the close of the investigation. The decision of the Human Resources Manager shall become effective when issued.

    b. An employee may appeal to the Executive Director or his/her designee for review within five working days of the issuance of the final decision. The Executive Director shall review the records and seek additional information if necessary and render a final decision within ten working days of the appeal.

D. Responsibilities:

1. Human Resources is responsible for advising supervisors, senior managers and department heads regarding progressive discipline procedures.

2. During each level of discipline, the immediate supervisor should include recommendations to the employee on what corrective action is needed. A time line of expected corrective behavior and consequences should also be given to the employee either orally or in written form depending on the level of discipline.

3. Supervisors, Managers and Department heads are responsible for maintaining complete, accurate and objective reports and documents describing the deficiency, misconduct or violation of Library policy and presenting such evidence at the hearing. Hearing Examiners shall give each Statement of Charges full, impartial and prompt consideration.

4. All matters and documentation associated with progressive discipline shall be kept in confidence by the Library staff involved in the process.

E. Definitions:

Immediate Supervisor: Usually the first rater for performance appraisals.
Senior Manager: Managers who are excluded from the bargaining unit.
Department Head: Executive Management Team